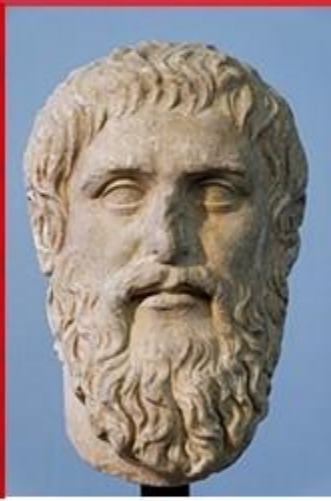
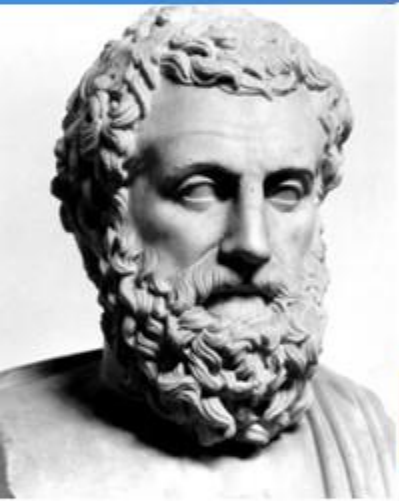


ETHICS, INTEGRITY & APTITUDE



MODULE – 39

**RIGHT TO INFORMATION
ACT (RTI), 2005**

RIGHT TO INFORMATION ACT (RTI), 2005

1 Because of secrecy, there is **Massive corruption** and **failure of welfare schemes**

2 Only **28% of money** spent on **PDS** reach **poor people**.

3 Problem with **identifying beneficiaries**.

4 On an Average, a village is expected to receive **350 Scheme**. However there is no awareness about where the money is going.

- In Rajasthan, a village approached district administrator about their welfare schemes like subsidies – **Administrator refused to share details**.

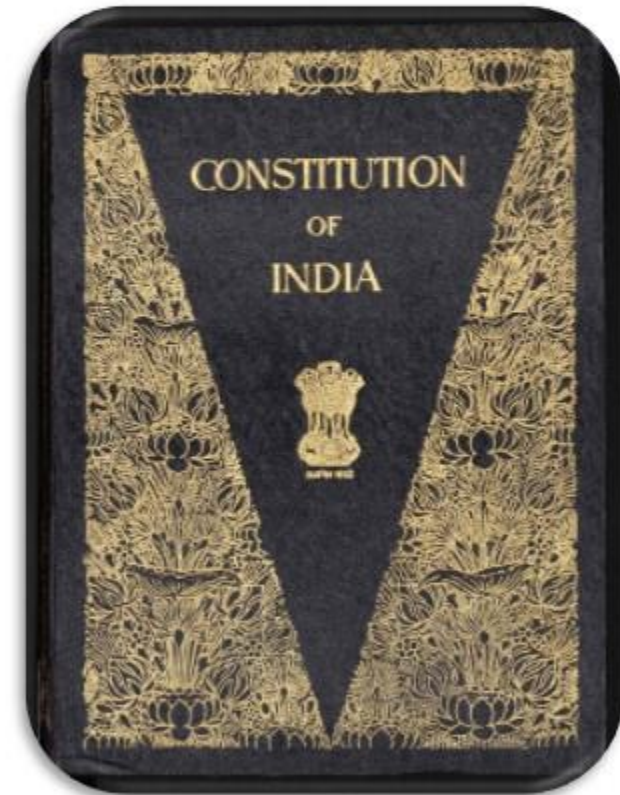
- Villagers agitated for transparency, supported by **MKSS** led by Aruna Roy (Former IAS).
- **District administrator** was forced to provide information to all villages. 1st success of **NGO movement**.
 - State government was forced to bring RTI later because of demand.



5 Constitution is empowered by the people and hence, they have right to know what governance is being done, **what happens within government.**

6 East India Company and British governments are highly **secretive.**

- **1857 Revolt** failed and one of the reason is absence of support from Middle class. They believed that British government was good and were ignorant of exploitative nature.
- Later **Dadabai Naoroji** book '**Unbritish rule in India**' showed all the **brutal reality.**



RTI is master key to **open** lock of good governance (2ND ARC).

RTI Act 2005

- The **Right to Information Act 2005** or RTI 2005, came into force in order to encourage a **corruption free**, **transparent** and **accountable** form of government in which the citizens feel a sense of **power** and **safety**.



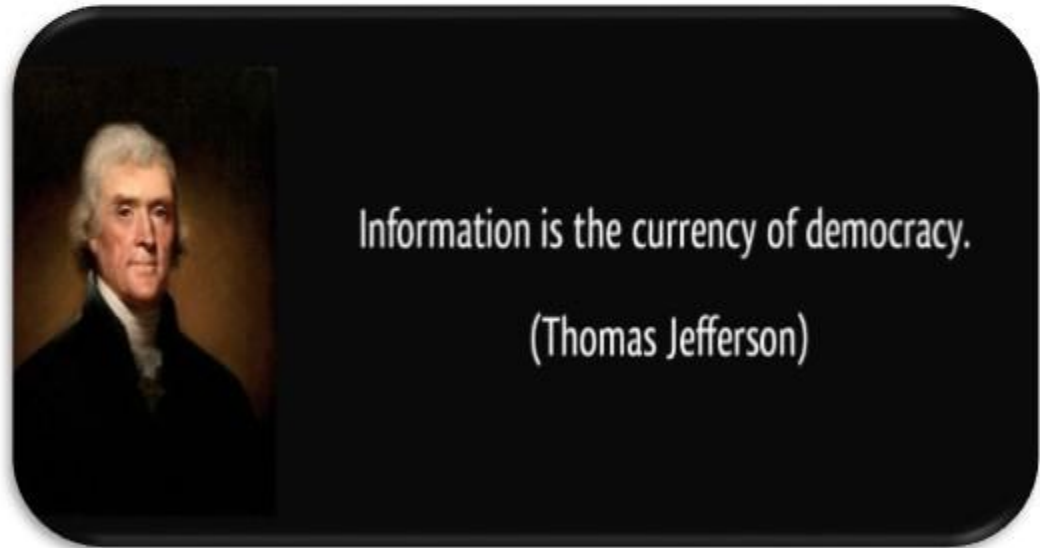
PROVISIONS

- Under the Act, a **citizen** can demand from any **public** or **government authority** any **information** as long as it does not pertain to **national security** and **defence** or some **personal information** and the authority is supposed to respond within **a period of 30 days** to the application.



PROVISIONS

- 2 Every government department has to appoint a **Public information officer** (PIO)
- 3 Information should be provided **within 30 days**
- 4 If not provided , citizens have grievance redressal through information commissions like **CIC** or **SIC**.
- 5 **Section-3 of RTI**: All citizens have the right to information
- 6 **Section-4 of RTI**: Every **government department** or **ministry** should furnish information in **voluntary manner**.



2nd ADMINISTRATIVE REFORMS
COMMISSION

PROVISIONS

- 7 Section-6 of RTI: Request for obtaining information
- 8 Section-7 of RTI: How your requests will be treated
- 9 Section-8 of RTI: Exemptions
- 10 Section-19(1) of RTI: First appeal
- 11 Section-19(2) of RTI: Second appeal
- 12 Section-20 of RTI: Penalties and disciplinary actions

Transparency: Openness in Administration
Accountability: Making individual legally punishable for his actions.



i

SECRECY IN ADMINISTRATION

1 Colonial Legislations in essence Promote culture of secrecy in administration.

- Official Secrecy Act (OSA), 1923 – To hide all information from people

- Indian Evidence Act, 1872 – Section 123 and 124: No unpublished information can be used as evidence in court of Law.

2 **Civil services Conduct Rule, 1964:**
Persons at low level officials in organizations can't publish any material without permission of superior.

3 **Section-8 of RTI:** No information in OSA, 1923 can be published under RTI.
Eg: Cooking expenses of Rashtrapati Bhavan (RTI) – National security issue.

4 In USA, under Freedom of Information Act, top secret is revealed after 30 years.

**The Central Civil Services
(Conduct) Rules, 1964**

i

SECRECY IN ADMINISTRATION

5 In India, top secret never made public.

6 Under section 8 of the RTI Act, 2005 Govt/public authorities are exempted from sharing following information:

a Affecting the Sovereignty, Integrity, Security, Strategic interest, Scientific interest or Economic interest of the State of India

b Affecting relation of State of India with Foreign State

c

Forbidden by any court of law in India

d

Breach of privilege of State assembly or Parliament of India

e

Intellectual Property Rights, Copyright, Commercial Confidence or Trade Secrets



ETHICS, INTEGRITY & APTITUDE

2nd ADMINISTRATIVE REFORMS COMMISSION

2ND ARC ON RTI: PROBLEM AND SOLUTION

i

SECRECY IN ADMINISTRATION

7

Under **section 8** of the RTI Act, 2005 **Govt/public authorities** are exempted from sharing following information:

a

Available to a person in his **fiduciary relationship**, unless disclosure is required in larger public interest

b

Received from **foreign** Government

c

Risk the **life** or **physical safety** of any **person**

d

Impact or obstruct **legal** investigation

e

Minutes of **Union Cabinet** meeting including discussion.

f

Personal information that is a breach of Privacy

8

2nd Arc: OSA to be replaced with **National Security Act**. Eg: Where nuclear missiles are placed

9

Change Civil Services **conduct rules** towards Implementing section-4 of RTI.



2 INFORMATION COMMISSION

By 2018, **RTI** became completely **ineffective** because of **number of petitions pending with information commission**.

1 Composition of **Information commissions** at both central and state level are filled by retired bureaucrats.

2 **Regulatory authorities** have become parking lot of retired bureaucrats.

3 **2nd Arc**: Members appointed by Centre and State should be from

- **Non-civil service** background
- Those who participated in transparency related **NGO** movement.



ETHICS, INTEGRITY & APTITUDE

2nd ADMINISTRATIVE REFORMS COMMISSION

2ND ARC ON RTI: PROBLEM AND SOLUTION

3

APPOINTING CIC

Most **loyal members of government** are appointed.

4

NECESSARY STAFF NOT AVAILABLE

5

NO REAL POWERS WITH INFORMATION COMMISSION



SECOND ADMINISTRATIVE
REFORMS COMMISSION



RIGHT TO
INFORMATION

ETHICS, INTEGRITY & APTITUDE

2nd ADMINISTRATIVE REFORMS COMMISSION

2ND ARC ON RTI: PROBLEM AND SOLUTION

6

COLLECTING AND STORING INFORMATION

- 1 Deliberate destruction of evidence.
- 2 Files catch fire. Eg: Maharashtra – Adarsh scam – Hard disk destroyed.
- 3 2nd Arc recommended – Management information system, real time updation of information on website.

7

COLONIAL ATTITUDES OF BUREAUCRACY

Against RTI

- 1
 - UK: They have attitude of servant;
 - India: They feel themselves as rulers.



2ND
ARC
REPORTS



2nd ADMINISTRATIVE REFORMS COMMISSION

MISUSE OF RTI AND 2ND ARC RECOMMENDATIONS

90% of applications are filed by insiders within government department against Political opponents or by NGOs to Blackmail.

PREVENTION: 2ND ARC SUGGESTED

- 1 Section-7 of RTI to be amended to prevent misuse of RTI. (PIO in consultation with member of Information Commission can reject RTI application if he believed that there is no public interest involved)

- 2 Once rejected, applicant can't go to information commission again.

- This is only temporary solution
- PIOs may misuse it.



PREVENTION: 2ND ARC SUGGESTED

3 Long term solution is implementation of **Section-4** of RTI.

- Voluntary disclosure of **information** by government agencies.
- Real time updation of information on **websites of government**.

4 Sensitivity training to bureaucracy to change their **attitudes**, **colonial attitudes** to be **replaced** with **democratic values**.

5 Creating awareness among citizens about **RTI** with the help of **NGOs** and media.

6 Ensuring **E-Governance** is carried out in **vernacular** or **regional languages** so that people can understand governance better.



PREVENTION: 2ND ARC SUGGESTED

7 Transparency must also result in accountability by having effective grievance redressal mechanisms for citizens. (Lokpal, Lokayukta, Vigilance commissions, Vigilance cells in departments and ministries, CBI).

8 Protection of whistle blowers

9 Institutions out of RTI: Army, Judiciary.
➤ It is difficult when grown up are fearing light.



PREVENTION: 2ND ARC SUGGESTED

10 Survey among *ASEAN Nations* – More people in *India* are not aware of their government.

USA – Judges are appointed for life

- Names given by *President*.
- There will be *deliberations* openly in media.
- *Congress* and *Senate* acceptance.
- There is *transparency, accountability*.

India – Politicization of Judiciary (Post-retirement benefits)

- Retired *CJI* appointed as *Chairman* of Commissions, *Governors*.
- Unholy *nexus* between *political, executive* and *judiciary*.



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